

Tentative Rulings for August 19, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG03002	<i>Adam McCormick v. Henley Pacific LLC</i> is continued to Tuesday, September 1, 2026, at 3:30 p.m. in Department 502.
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Tentative Rulings for Department 502

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(20)

Tentative Ruling

Re: ***Perez v. Perez et al.***
Superior Court Case No. 23CECG00025

Hearing Date: August 19, 2026 (Dept. 502)

Motion: (1) By Defendants to Bifurcate
(2) By Plaintiff For Leave to File Fourth Amended Complaint
(3) By Plaintiff for Preliminary Injunction

Tentative Ruling:

(1) To grant and bifurcate trial such that the affirmative defense of waiver is heard before trial of plaintiff's case in chief. (Code Civ. Proc., §§ 598.)

(2) To deny leave to amend. (Code Civ. Proc., § 473.)

(3) To deny the motion for preliminary injunction. (Code Civ. Proc., § 526.)

Explanation:

Motion to Bifurcate

The court is given great discretion in regard to the order of issues at trial: "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order...that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case..." (Code Civ. Proc., § 598.) Equitable issues such as waiver are commonly bifurcated and tried first. (*Hoopers v. Dolan* (2008) 168 Cal.App.4th 146, 156-157.)

In December of 2017 plaintiff and defendants executed a settlement agreement resolving defendants' claims against plaintiff in Case No. 16CECG04166. The settlement agreement provided that all parties waived, released and discharged all claims and causes of action against each other, known or unknown and expressly acknowledged waiving all protections of Civil Code section 1542. While 16CECG04166 did not involve plaintiff's claims of sexual abuse, the waiver is extremely broad. It would be far more efficient to resolve the waiver defense first, as it may be unnecessary to hold trial of the sexual abuse claims if the waiver defense is successful.

Motion to Amend Complaint and Motion for Preliminary Injunction

Plaintiff moves to amend the complaint to add a third cause of action for fraudulent transfer under the Uniform Voidable Transactions Act ("UVTA"), Civil Code section 3439.04. The amendment would add a new party, plaintiff's brother and defendants' son, Roberto Perez Jr.

In moving to amend a pleading, the moving party “must” file a declaration that specifies: (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Criteria (1) and (2) are satisfied, but plaintiff does not offer satisfactory explanation for waiting until February of 2026 to seek to make this amendment. It appears that plaintiff has long been aware of the transfers of property that serve as the basis for the amendment. Plaintiff explains that the matter was on appeal from 2024 to early 2025, with the matter returned to this court's jurisdiction in April 2025 with the remittitur. Plaintiff simply states in his declaration that he thereafter “undertook further legal research to determine the proper procedural vehicle for asserting a statutory claim based on property transfers made to avoid creditors.” There is no showing that plaintiff acted diligently in seeking to make this amendment. Though he was aware of this issue, when plaintiff filed a motion for leave to file a Third Amended Complaint in September of 2025, he did not seek to make this amendment at that time, instead waiting another five months to seek to make this amendment, with trial approaching. Plaintiff does not make an adequate showing regarding Rule 3.1324(b)(3) and (4).

Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) Here, there is no indication of loss of evidence, but trial set to begin September 8, 2026. Amending the complaint now would necessarily require continuance of trial, as the new party would need to be served, and would have 30 days to amend the complaint. Defendants indicate they would challenge the amended complaint. Amending the complaint now would add costs of preparation, as the parties have already been gearing up for trial, and certainly further discovery would need to be conducted. Adequate prejudice is shown. The court intends to deny the motion to amend. Plaintiff will need to pursue this claim in a separate action.

The motion for preliminary injunction is premised on plaintiff being granted leave to file the amended complaint with the cause of action under the UVTA. The leave to amend is denied, the motion for preliminary injunction must be denied as well.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-18-26.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Ermelinda Rodriguez v. Encompass Insurance Company***
Superior Court Case No. 24CECG02371

Hearing Date: August 19, 2026 (Dept. 502)

Motion: Respondent National General Insurance Company's and
Respondent Encompass Insurance Company's Motion to
Compel Arbitration and Appoint Arbitrator

Tentative Ruling:

To take off calendar. Neither party submitted a joint list of arbitrators for the court to select a list of five arbitrators within 15 days of the July 21, 2026 order, as per the July 21, 2026 order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-18-26.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Boyajian v. Saint Agnes Medical Center**
Superior Court Case No. 25CECG04882

Hearing Date: August 19, 2026 (Dept. 502)

Motion: By Defendant Humangood Fresno dba The Terraces at San Joaquin Gardens to Compel Arbitration and Stay Civil Action

Tentative Ruling:

To grant defendant's motion to compel arbitration. To order this action stayed pending the completion of arbitration. (9 U.S.C § 3.)

Explanation:

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) "Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute." (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

The party moving to compel arbitration bears the burden of proving by a preponderance of the evidence the existence of an arbitration agreement. (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 18; *Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 683.) In order to determine whether an arbitration agreement exists, the court may need to assess the parties to any such agreement. (*Melchor Investment Co. v. Rolm Systems* (1992) 3 Cal.App.4th 587, 592.) After the moving party establishes the existence of an arbitration agreement between the parties, then the burden shifts to the opposing party to show that the agreement is otherwise unenforceable. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Here, plaintiff¹ has not challenged the existence of the arbitration agreement or her signature on such. Rather, plaintiff challenges whether she had authority to sign the agreement at issue, whether the Patient's Rights Act claims may be compelled to arbitration, whether the agreement is unconscionable, and whether the claims can be compelled to arbitration in light of a third party in the case which is not a party to the agreement.

¹ The court notes that the complaint was filed on behalf of plaintiffs Ralph Boyajian, SR and Mary Boyajian. Since the instant motion was filed, plaintiff Ralph Boyajian, SR passed away and Mary Boyajian has been named as successor-in-interest. The court will refer to plaintiff in the singular.

Authority

Plaintiff asserts that she lacked authority to sign the arbitration agreement. With her own declaration, plaintiff provides a Durable Power of Attorney ("DPOA") naming her. (Boyajian Decl., Exh. 1.) The DPOA provides "[g]enerally to do, execute, and perform any other act, deed, matter, or thing, that in the opinion of the agent ought to be done, executed, or performed in conjunction with this power of attorney, of every kind and nature, as fully and effectively as the principal could do if personally present." (Id. at sec. 18.) The DPOA explicitly restricts using the principal's assets, exercising trustee powers where the agent is a settlor and the principal is a trustee, and exercising ownership over life insurance policies the principal owns on the agent's life. (Id. at sec. 20.) None of these restrictions are at issue. The DPOA gave plaintiff expansive authority. The agreement at issue bears plaintiff's signature "on behalf of the Resident and as an Individual". (Isfeld Decl., Exh. A.) The court finds that plaintiff had authority to sign the arbitration agreement at issue, and did so, on behalf of Ralph Boyajian and herself.

Governing Law

The agreement explicitly states that it is to be governed by the Federal Arbitration Act ("FAA"). (Isfeld Decl., Exh. A, Art. 7.) Where a "state law prohibits arbitration of a particular claim ... [t]he conflicting rule is displaced by the FAA." (*Valley View Health Care, Inc. v. Chapman* (E.D. Cal. 2014) 992 F.Supp.2d 1016, 1029.) Plaintiff asserts the Patient Rights Act claims cannot be compelled to arbitration. California law provides that Health and Safety Code section 1430 claims are not subject to arbitration. (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 474.) However, as the FAA governs here, the California Health and Safety Code provisions are preempted where they bar arbitration. (*Valley View Health Care, Inc. v. Chapman*, *supra*, 992 F.Supp.2d at p. 1029.)

Plaintiff also asserts that Code of Civil Procedure section 1281.2 provides this court with discretion to deny the motion to compel where a third party in the case is not a party to the arbitration agreement. While Code of Civil Procedure section 1281.2 does provide such authority, the arbitration agreement explicitly provides that California Civil Procedure Code section 1281.2, subdivision (c) is excluded from the agreement. (Isfeld Decl., Exh. A, Art. 6.)

As such, neither the Patient Rights Act claims nor the presence of a third party in this matter prevent the court from compelling arbitration.

Unconscionability

Plaintiff submits that the agreement is unenforceable because it is unconscionable. If the court finds as a matter of law that a contract or any portion of it was unconscionable at the time it was made, the court may refuse to enforce it, or may enforce the contract without the unconscionable provisions, or limit their application to avoid any unconscionable result. (Civ. Code § 1670.5, subd. (a).) There are two prongs considered in this analysis: procedural unconscionability and substantive unconscionability. Both must be present for a court to exercise its discretion to refuse to enforce an arbitration agreement under the doctrine of unconscionability. (*Armendariz*

v. *Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) They need not be present in equal amounts; essentially a sliding scale is used, and where there is substantive unconscionability, less procedural unconscionability need be shown. (*Id.* at pp. 113-114.)

Procedural unconscionability has to do with the manner in which the contract was negotiated and the parties' circumstances at that time, and focuses on the factors of oppression or surprise. (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327; *Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 113.) Oppression "arises from an inequality of bargaining power of the parties to the contract and an absence of real negotiation or a meaningful choice on the part of the weaker party." (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.) "Surprise" involves the extent to which the supposedly agreed-upon terms are buried in an overly complex form; it deals with "the disappointed reasonable expectations of the weaker party. (*Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1406.)

Plaintiff argues the agreement is procedurally unconscionable because it was presented on a "take it or leave it" basis. An agreement is adhesive where a standardized contract, drafted and imposed by the party with superior bargaining strength, gives the other party only an opportunity to adhere to the terms or to reject them. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) Here, the agreement begins, in bold type font, "Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility." (*Isfeld Decl., Exh. A.*) It also provided that it could be rescinded by written notice within 30 days of signing. (*Id.* at Art. 4.) Plaintiff has not demonstrated procedural unconscionability.

Substantive unconscionability exists if the terms of the agreement are overly harsh or one-sided, provisions which shock the conscience, are unduly oppressive, or unreasonably favorable to the party seeking to compel arbitration. (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 909.) Plaintiff argues the agreement is substantively unconscionable because the potential arbitration fees are exorbitant. An arbitration agreement may be substantively unconscionable where it requires payment of unaffordable arbitration fees. (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 218.) Courts conduct a case-by-case analysis to determine whether there are prohibitive costs. (*Ibid.*) Courts cannot find arbitration costs unconscionable "absent a showing that [arbitration] fees and costs in fact would be unaffordable." (*Ibid.*, quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 920.) Here, plaintiff has not made such a showing. Plaintiff has only asserted fees can range from \$6,000 to \$18,000 per day. Plaintiff has not demonstrated substantive unconscionability.

Plaintiff has not shown the arbitration agreement is unconscionable.

The motion to compel arbitration is granted. The matter is stayed pending arbitration.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

